

2 Doing One's Fair Share

EVEN if the considerations offered in the preceding chapter conclusively defeat political anarchism, they are not by themselves sufficient to refute *philosophical* anarchism because they do not explain why one has a duty to obey the law.¹ A citizen's political responsibilities have yet to be established because the focus to this point has been exclusively upon the permissibility of a state's coercing its constituents, not the political duties of those coerced. I am hopeful that we can develop an adequate account of our duty to obey the law, however, by building upon the defense of statism offered earlier. In particular, I think that just as samaritanism is crucial to justifying the state's coercion, it is the key to explaining our political duties.²

Samaritan Duties and Fairness

The first thing to notice is that the peril of others can explain not only why one may permissibly be coerced, it can also explain why

1 For the purposes of this essay, I draw no distinction between "duties" and "obligations." What is more, unless I specify otherwise, I understand all duties to be perfect and enforceable. In other words, I will not use the term "duty" in cases that might be thought of either as "imperfect" duties or as matters of virtue. (In these cases, I shall most often speak of an agent as merely having "moral reasons" to do something.)

2 The account of our duty to obey the law I defend later draws upon my arguments in "Toward a Liberal Theory of Political Obligation," *Ethics* 111 (2001): 735–59, and "Political Obligation and the Particularity Requirement," *Legal Theory* 10 (2004): 97–115.

one is obligated to assist those who are imperiled. (Indeed, if anything, it is more common and less controversial to posit samaritan duties than to defend the existence of a samaritan right to coerce.) Thus, just as I invoked samaritanism to explain why Beth may permissibly commandeer Cathy's car if it is the only way to get Amy to the hospital in time to save her life, samaritanism can help explain why Beth has a duty to take Amy to the hospital and/or why Cathy has a duty to loan her car to the cause. The central idea here should be apparent in light of our earlier discussion of the room any plausible version of voluntarism must leave for samaritanism: Although voluntarists are no doubt correct that we should be largely free to determine the content of our special moral responsibilities, moral duties may in fact be unilaterally foisted upon us in extreme circumstances, when others are sufficiently imperiled and we can help them at no unreasonable cost to ourselves. This is why virtually no one denies that one would have a moral duty to wade into a shallow pond to save a drowning baby, for instance, even if this rescue requires one to get one's shoes and trousers wet.

Once samaritan duties are acknowledged, it does not take much imagination to see how we can draw upon the foregoing defense of statism to explain our duty to obey the law. If the peril that others would endure in the state of nature is sufficiently grave to justify coercing me without my consent, then it stands to reason that this very same peril could ground my duty to perform an easy rescue. Thus, given that states rescue us all from the perilous circumstances that would inevitably prevail in their absence, and because states rely upon the compliance of their constituents to perform their political functions, it seems to follow that each of us has a samaritan duty to obey the law. In other words, just as Amy's medical peril can render Beth duty bound to rush Amy to the hospital, the potential peril of my compatriots can obligate me to obey the laws of my state. The vehicle required to save Amy is Cathy's car, and the vehicle required to save my compatriots is our state; but Beth's *duty* is to drive this car, and my *duty* is to obey the legal commands of my state.

Thus, our first formulation of the samaritan account is that each of us has a duty to obey the law because this obedience rescues our compatriots from the perils of the state of nature. I specify that this is a “first formulation” because, in order for obedience to the law to qualify as a samaritan duty, it must be both (1) not unreasonably costly and (2) in fact necessary to rescue others from peril. And, as I shall now explain, the cost condition does not present insuperable problems, but the necessity condition does require us to supplement and refine our account.

First, notice that a citizen’s obedience to the law could qualify as an “easy” rescue even though states sometimes make considerable demands upon their constituents. As noted earlier, it is plausible to construe obedience to the state’s laws as not unreasonably costly because one must consider the great benefits along with the admittedly substantial costs of citizenship. Once these benefits are subtracted from the costs, there is nothing awkward about labeling the *net* costs as not unreasonable, and thus there is nothing incoherent about classifying obedience to the law as an easy rescue.

Problems emerge with the necessity condition, however, because it appears that my compliance with the state’s legal commands is not in fact necessary to save others from the perils of the state of nature. To appreciate the significance of this fact, recall that samaritanism becomes morally operative only when a particular course is essential to save the imperiled person. Thus, Beth would not be morally entitled to commandeer Cathy’s car unless this course of action was in fact necessary to get Amy to the hospital in time. (If Beth could just as quickly and easily get Amy there in a taxi, for instance, then Beth would have no right to take Cathy’s car.) Similarly, I went to such lengths in the preceding chapter to establish that a tolerable level of order could not be achieved in the absence of territorially defined states because political coercion would not be justified unless it were indeed necessary to eliminate the perilous chaos of life in a state of nature. (If private companies could secure a just peace without nonconsensually coercing anyone, for instance, then I would reject statism.) This raises difficulties for the straightforward samaritan account of our duty to obey the law, however, because – unlike a state’s

coercion of its constituents – it is not true that perilous circumstances would inevitably prevail unless I obey the law. Indeed, an average citizen's (dis)obedience typically has no discernible effect whatsoever upon a government's capacity to perform its functions, so it appears that no strictly consequential account of our duty to obey the state's commands can be plausible. To emphasize: In order for a samaritan account of the duty to obey the law to work, it would have to be true that others would be imperiled were it not for my legal compliance. But because there are plenty of cases in which no one (let alone all of my compatriots) would be any (let alone perilously) worse off if I disobeyed the law, it is unclear how samaritanism is relevant here. Given these facts, one might be tempted to jettison the samaritan approach. As I will now argue, however, these observations about necessity demonstrate only that we must further refine the samaritan account to take account of the social nature of the solution to the perils of the state of nature.

Rather than reject samaritanism as the key to explaining our duty to obey the law, I recommend that we merely import the nonconsequential consideration of fairness. Thus, while it is certainly true that states rather than individual persons are necessary and sufficient to eliminate the perils of the state of nature, we must not lose sight of the fact that a state is nothing more than the (coerced) coordination of numerous individual persons. Moreover, we must bear in mind that a state's capacity to perform its functions (and the amount of sacrifice required by the state's constituents) depends principally upon the percentage of those subjects who comply with the state's legal commands. Finally, because the responsibility to rescue others from peril falls equally upon all of us, I suggest that we understand our political obligations as our fair share of the communal samaritan chore of rescuing others from the perils of the state of nature. On this view, each of us is bound to obey the law because all of us have a responsibility to help rescue others when this assistance is not unreasonably costly.

At this point, a critic might object that this samaritan approach will not suffice because it cannot explain why one's fair share of rescuing others from peril must come in the form of obedience

to the law. In other words, even if one assumes that each of us has a responsibility to rescue others from peril, there are numerous people facing various types of dangers all over the world, so it is not clear why the mandate that we do our fair share to help those in peril requires us to obey the law rather than, say, send money to famine relief. This objection (which emphasizes what John Simmons has called the “particularity requirement”) is especially powerful because it promises to undermine the account offered here *even if one concedes everything I have asserted to this point*.³ In other words, this form of criticism seems on target even if it is true that (1) states supply vital benefits that would not be available in their absence, (2) states perform their requisite functions without imposing unreasonable costs on their subjects, (3) samaritan duties exist, and (4) considerations of fairness can explain why we must do our fair share in support of communal samaritan projects. To fully appreciate the force of this objection, it is important to understand the particularity requirement and why critics have invoked it to challenge other accounts of our political obligations.

The Particularity Requirement

The particularity requirement became prominent in the literature when Simmons raised it in response to those who argued that our duty to obey the law should be understood as a natural duty. Conceiving of the duty to obey the law as a natural duty to support just institutions was welcomed as a great advance because it promised to explain why everyone, regardless of her transactional or associative history, is obligated to comply with the state’s legal commands.⁴ The central idea is that because justice is such

3 Simmons introduced the particularity requirement in *Moral Principles and Political Obligations*, especially in Chapters II and VI.

4 One’s transactional history is a function of the things done by and for one, like the promises one has made, the favors one has done for others, the benefits one has received, and so on. One’s associative history is constituted by the socially significant associations one has had with friends, family members, colleagues, compatriots, and such.

an important value, it stands to reason that each of us has a duty to promote it. And because institutions often play such a pivotal and ineliminable role in making the world a more just place, the mandate to promote justice should be understood in terms of supporting just institutions. Thus, by beginning with a natural duty, defenders of this account need posit neither a previous transaction nor a preexisting association to explain why each of us is bound. Problems remain, however, because it is not clear why the general duty to support just institutions must be cashed out in terms of the more particularized obligation to obey the laws of one's own state. Even if one assumes that governments are just institutions, for instance, what explains why we must support them rather than other, nonpolitical institutions designed to make the world more just? And even if we must support political states, why must each person support her own state? Why is each of us not free to support either the just state of her choosing or perhaps the most just state, for instance? Finally, even if we could somehow establish that each person is specifically bound to support her own state, it remains to be explained why this support must come in the form of faithful obedience to the law; why are we not free to choose the manner in which we support our governments?

Thus, while natural duty theories enjoy an initial advantage over those accounts that rely upon a historical transaction or association, they are vulnerable to a distinctive type of objection. Transactional and associative approaches have had trouble establishing the requisite historical act/relationship, but at least it is clear to whom one is bound: the transactee/associate. Natural duty theorists need show no historical act/relationship, but then it remains mysterious to whom in particular one is bound. Natural duty theorists would be well positioned to meet this challenge if they began by assuming a natural duty either to *support all just institutions in precisely the form that they request to be supported* or, more specifically, to *obey the law*. The former is too ambitious to be plausible, however, and the latter *assumes* rather than *explains* political obligation. Thus, the operative challenge for any natural duty theorist is to begin with a sufficiently modest, intuitively

compelling natural duty and yet still show how this plausible general imperative requires one to perform the highly particularized chore of obeying the laws of one's own country.

In light of the preceding discussion, it should be apparent why the samaritan approach must contend with the particularity requirement. Insofar as my account of our duty to obey the law features samaritanism, it clearly relies upon a natural duty. Samaritan duties are natural because they do not depend upon a previous transaction or a preexisting association between the rescuer and the rescuee; if a person is sufficiently imperiled and one can save her at no unreasonable cost, one cannot justify one's failure to rescue by pointing out that one never agreed to do so or that one had no morally significant relationship with her, for instance. Moreover, I regard the fact that samaritan duties are widely accepted in a variety of contexts as ample evidence that they provide just the type of modest, intuitively compelling moral foundation upon which we should seek to construct a generally acceptable account of our duty to obey the law. However, while samaritan duties are attractive insofar as few people are pretheoretically inclined to doubt their existence, like other natural duties they must contend with the particularity requirement. More specifically, once one recognizes both that people experience various types of peril and that samaritan duties can be owed to anyone, at least three pressing questions emerge. **First, given that political instability is by no means the only source of peril, why can we insist that our share of samaritan assistance must come in the form of helping to supply *political* benefits as opposed to providing nonpolitical benefits, as one would if one contributed to famine relief, for instance? Second, even if one can establish that one must contribute to the avoidance of political instability, what explains why this contribution must be made to one's own country?** Given that samaritan duties do not depend upon the existence of a socially salient relationship (and thus do not depend upon the fact that one's *compatriots* might become imperiled), it is difficult to see why samaritanism would require one to support one's own country. Finally, even if it could be shown that one must support one's own state in particular, what explains why

this support must come in the currency of compliance with one's government's legal commands? Merely obeying the law is not always the most effective way to support one's country, so it is not entirely clear why obedience to the law should be singled out as that which is invariably demanded. In short, although it does not seem terribly controversial to suggest that all of us have a moral duty to do our share to rescue others from grave peril, it is far from clear how this general mandate requires us in particular to obey the laws of our own state. Addressing these admittedly difficult questions in order, I will suggest that each can be answered once one recognizes the significance of two facts: (1) political instability creates a coordination problem and (2) discretion is a good.

Let us first explore why doing one's fair share to rescue others from peril necessarily requires one to support *political* institutions. For instance, why is it that I could not do my share by contributing substantially to groups like Oxfam America, which assist starving people in famine-stricken countries? Indeed, given that my compatriots' political peril is merely potential, whereas the peril of those currently starving to death is actual, **if anything it seems as though samaritanism would require me to withhold my U.S. taxes in order to send the money instead to famine relief.** Thus, not only is it mysterious how an account built upon samaritan duties could single out political obligations, it appears that it might actually recommend that we neglect our political responsibilities to attend to far more pressing issues (like acquired immune deficiency syndrome [AIDS] and famine) that currently pose more grave peril.

Although I think that those of us in wealthy countries do far too little to address the various types of nonpolitical peril that claim so many lives around the world, I nonetheless believe that political peril is distinctive in two important ways. First, whatever one might do to eliminate nonpolitical peril will not excuse one from doing one's share to eliminate political peril. In other words, it is not possible to earn "credits" in other arenas that would excuse one from doing one's share in the political realm; thus someone like Mother Teresa could not justify her legal disobedience by claiming that she paid her portion of the samaritan bill at the

Calcutta office, for instance. Second, while we might have a responsibility to eliminate various types of nonpolitical peril, only political states are justified in *forcing* us to do our share. Thus, whereas my government might justifiably threaten to punish me if I disobey the law, Oxfam America would not be justified in punishing me if I chose not to contribute to this organization. The crucial distinguishing feature of political peril is that it is not merely a big problem, it is fundamentally a *coordination* problem.

I say that **political instability is fundamentally a coordination problem because there is no way effectively to eliminate the sources of this type of peril without coordinating people. As emphasized earlier, harmful chaos would prevail unless virtually all of those in spatial proximity defer to the** same set of clearly defined rules. Other types of peril, like famine or disease, could be just as big and dangerous as political instability, but they are not essentially problems of coordination because coordination need not be necessary for their solution. Consider world hunger, for instance. It is an open empirical question whether Bill Gates has sufficient funds to buy the food necessary to effectively eliminate famine, but there is no reason in theory why he could not do so. It is clearly not an empirical question whether Gates has enough money to eradicate the peril caused by political instability, however, because the latter is not the type of problem that can be satisfactorily addressed with money alone. Even if Gates had half of the money in the world, for instance, he could not ensure political stability either abroad or at home because peace and justice are not the types of goods that can be single-handedly secured by an individual; they prevail only when virtually everyone defers to the same authority. The fact that political peril is inherently a problem of coordination is important because it helps explain why political coercion can be justified. It is not merely that political coercion is a *possible* solution to the harmful circumstances of the state of nature; it is the *only* viable solution because only coordination will solve the problems, and there is no way to ensure sufficient coordination without coercion. Thus, my state permissibly coerces me because uniform coercion within its borders is the only solution.

To appreciate the importance of this point, compare my state to Oxfam America, which (let us assume) does an admirable job of raising funds and distributing vital resources to some of the world's most imperiled people. At first blush, it might seem that Oxfam could run an analogous argument: It should be allowed to take my funds without my permission in order to feed people who would otherwise starve to death. Upon closer inspection, however, there is a telling disanalogy between my state and Oxfam. It may be true that coercing me would be a viable way to raise the funds required to save more imperiled people, but it is clearly not the *only* way to do so. There are various ways to raise the funds without coercing me because the funds could come from anywhere. The crucial point is that there is nothing special about *my* money – funds from Bill Gates or anyone else would be just as effective. Because political instability is a coordination problem that must be solved territorially, on the other hand, there is something about those in the relevant territory that singles them out as special. Think of it this way: A state could not perform its requisite functions merely by coercing a large number of randomly chosen, physically discontinuous people (as it would if it coerced all of the world's red-haired people or everyone whose last name begins with the letter **W**, for instance) because peace and stability require not just that people be coordinated but that those who *regularly interact* with one another (i.e., those who are spatially contiguous) all play by the same rules. Thus, whereas Oxfam could function just as well whether it received funds from me or from someone living on another continent, my country is obviously not indifferent between the prospects of coercing me or someone living elsewhere in the world. As a consequence, advocating the samaritan account does not require a theorist implausibly to suggest that political chaos is the only (or even the worst) type of peril in the world; one can admit that the world sadly contains a variety of sources of extreme peril and yet still single out political peril as distinctive insofar as it can be solved only via coordination. And since the sufficient level of coordination cannot be achieved without coercion, this explains why we can consistently defend political coercion without thereby committing ourselves

to the conclusion that groups like Oxfam, which also rescue people from peril, may permissibly employ similar types of coercion.

Even if the preceding reasoning is on target, and there are good reasons to single out political states as uniquely justified in coercing their constituents, this is only the first step in addressing the particularity requirement. More work remains to be done because the arguments just offered are a potential justification for the *state's* uninvited imposition, but they do not in themselves establish that individual citizens have an obligation to obey the law. The particularity requirement has not yet been satisfied because the distinction between a government and organizations like Oxfam depends upon the *necessity* of the former coercing its own constituents in particular and, as emphasized earlier, a single citizen's political obedience is not typically *necessary* in the way that an entire state's presence is. To emphasize: Even if political states are uniquely justified in coercing their constituents because such coercion is the only way that they can perform their requisite (samaritan) functions, this does not establish that any given citizen's duty to do her fair share of rescuing others from peril must come in the form of obedience to her state's legal commands. To reiterate the salient questions that remain unanswered: Even if one has a duty to do one's fair share of assisting those in peril, why must this share include supporting political institutions? And even if one must support political institutions, why must one in particular support that institution currently imposing itself on one? And finally, even if one must support one's own country, why must this support come in the particular form of obedience to the law? As I shall now explain, these three related questions can be satisfactorily answered, but only once one recognizes that discretion is a good of which one may not take more than one's fair share.

Let us begin with the most general of these three questions: Why does the duty to do one's fair share of assisting those in peril require one more specifically to support political institutions? To appreciate the force of this question, think again of Mother Teresa. Given that Mother Teresa did so much to help gravely imperiled strangers, why was her monumental sacrifice not sufficient to

discharge any samaritan duty that one might reasonably posit? More to the point, how can I suggest that, in addition to everything else she did to help those in pain, her duty to do her fair share of rescuing others from peril also required her to support political institutions?

Answering this question requires combining the fact that political chaos presents a coordination problem with the observation that discretion is a good. I do not take myself to be asserting anything terribly insightful or controversial in proclaiming discretion to be a good; I understand this simply as the commonsensical idea that each of us has good reason to want to be the author of our own lives, to choose the types of things on which we expend time and energy, and to be the one who determines which causes we support. To give just a few of the more obvious examples, we would like to decide for ourselves which (if any) religion to practice, which (if any) profession to pursue, which (if any) people with whom to associate, and which (if any) hobbies to explore. Discretion's status as a good is relevant to our duty to obey the law because virtually all of us would like to have discretion as to how we contribute our fair share to rescuing others. Imagine, for instance, that Bill, Catharine, Peter, Ted, and Teresa all live on my street. As it turns out, all five of my neighbors are extremely virtuous, and thus each is more than happy to act as morality requires, including doing his or her fair share to rescue others from peril. It should come as no surprise, however, that each has very different interests and inclinations, and thus each is disposed to support different worthy projects. Thus, Ted donates heavily to the United Nations, Bill contributes large sums to those stricken with human immunodeficiency virus (HIV)/AIDS, Catharine works tirelessly to reduce the amount of sexual violence, Peter dedicates himself to both persuading the relatively wealthy to give money to the poorest people in the world and to arguing on behalf of vulnerable animals, and Teresa toils endlessly on behalf of those starving to death. None of them, however, is particularly impressed with the benefits governments provide, and thus none contributes to the elimination of political peril. That is, Ted, Bill, Catharine, Peter, and Teresa are all very generous people who contribute a great

deal to the welfare of others, but none faithfully obeys the law or pays taxes.

What would you say about my neighbors? Would you insist that they are to be applauded for having done much more than I? Or do you think that they should be criticized for disobeying the law? My own view is that while my neighbors are to be praised for their exemplary generosity, they are also to be morally criticized for their disregard for the authority of the law. It might seem inconsistent for someone who conceives of the duty to obey the law as a samaritan chore to single out these people as especially committed to rescuing others from peril and yet simultaneously to object to their failure to obey the law, but the apparent inconsistency dissolves once one notices that my neighbors have helped themselves to more than their fair share of discretion. Teresa, for instance, attends to those starving to death because she is moved by famine victims, and Bill donates large sums to help those infected with HIV/AIDS because he is especially interested in this particular cause. But notice that Teresa, Bill, and my three other neighbors are able to disregard our state's legal commands only because the rest of us *do* respect the state's authority. More importantly, the rest of us would also prefer to ignore our government's legal commands in order to focus our attention more fully on the particular causes about which we feel most passionately, but the consequences would be catastrophic if all of us did so. In other words, my five neighbors are free riders *even though they are doing more than the rest of us* because they are enjoying the good of discretion, a good that is available only because the rest of us obey the law. Of course, the fact that these neighbors free ride on our obedience to the law does not erase the fact that they are incredibly generous to the causes about which they care, and thus there is nothing inconsistent about acknowledging their extraordinary generosity on the one hand and criticizing them for wrongly taking advantage of the rest of us on the other. Thus, as much as we might applaud Mother Teresa for doing so much on behalf of the famine-stricken in Calcutta, for instance, we would also be right to criticize her legal disobedience. The bottom line, then, is that obedience to the law is not just one more way that one

might choose to do one's fair share of rescuing others from peril. It is uniquely mandatory because legal solutions are fundamentally coordination mechanisms that are predicated on each of us forgoing our individual discretion.

This account of what is special about political institutions paves the way to our responses to the second and third questions about our particular political responsibilities because, once one recognizes what is distinctive about political institutions, it is not difficult to appreciate why one must support one's own state and why this support must come in the form of obedience to the government's legal commands. The short answer, in both cases, is that one's fair share must come in this particular currency because we could not effectively eliminate the peril if each person retained discretion regarding which government to support and how to support it. It is worth elaborating a bit on this brief answer.

Recall that the second question we must answer is, even if doing one's fair share to rescue others from peril requires one to support the elimination of political peril, why may each of us not choose which government to support? If I happen to think that Canada's government is the most just, for instance, then why may I not withhold my taxes from the United States in order to send the money to my neighbors to the north? Moreover, even if the samaritan account would require me to support one government in particular, it is not obvious that this would always be my own government. Given that the obligation in question purportedly stems from the importance of saving imperiled strangers, if I were required to send my money to one country in particular, it would seem more appropriate that I should give it to whichever state has the most precarious political arrangement (as I write this, Haiti comes to mind). If I sent my money to Canada (or Haiti), then I am certainly doing as much as I would have done in merely paying my taxes (and, unlike the hypothetical Mother Teresa, I cannot be accused of failing to do my share to eliminate *political* peril), so why have I not fulfilled my obligation to do my fair share to rescue others from peril?

The answer to this question becomes apparent when we reflect upon what would happen if *everyone* were given the discretion to

choose which government to support. It takes little imagination to see that governments would have considerable difficulties securing peace and protecting basic moral rights if they could count on the financial support and legal obedience of only those constituents who freely chose to support the government presiding over them. (And even if some governments could somehow function effectively, they would have to demand considerably more of those citizens who willingly supported them.) In other words, the “solution” of requiring merely that everyone contribute to the promotion of political stability in whichever fashion she sees fit would be no solution at all because governments could not in fact function effectively if everyone had this discretion. Thus, the reason I may not withhold my U.S. taxes in order to contribute to the government of Canada or Haiti is that my doing so would involve helping myself to a type of discretion that could not be enjoyed by everyone. Obviously I would prefer to have this discretion, but it would be unfair to reserve it for myself when my doing so depends upon others being denied this very same good.

Finally, it should now be apparent that the same line of reasoning used to answer our first two questions can also help us respond to our third question: Even if each of us must support her own government, why must this support come in terms of compliance with the state’s legal commands? Why are we not free to support our government however we would like, perhaps by paying more than our fair share of taxes, working overtime to encourage people to vote, or dedicating time to encourage fidelity to those particular laws about which we feel most strongly? Once again, the reason each person cannot be left free to choose the form in which she will support her state is that governments could not function effectively if everyone enjoyed this discretion. The fact that states solve a coordination problem is again paramount here: The key function of states is to get everyone in the given territory to defer to a single definitive set of rules, so obviously a government could not perform this function unless it required each of us to follow these rules. Now, because most of us typically disagree with at least some of our state’s laws, clearly we would prefer to be able to choose which laws to obey or perhaps

to offer our support in some fashion that has nothing to do with obedience to these rules. But since a few of us could reserve this discretion for ourselves only against a backdrop of general compliance in which others are denied this discretion, clearly it would be wrong to unfairly make an exception for ourselves.

To review: Although there would likely be no discernible consequence if a typical citizen either (1) failed to contribute to political stability, (2) contributed to some foreign state rather than her own, or (3) contributed to her own state in some fashion other than obedience to its laws, disregarding the law would still be impermissible because legal obedience is required as one's fair share of helping to rescue others from peril. It seems awkward to say that a legally disobedient citizen can fail to do her fair share of samaritan rescues even if (like Mother Teresa) she dedicates dramatically more of her time and energy to those people who are most imperiled, but the distinctive nature of political peril makes this moral condemnation appropriate. The key point is not merely that Teresa and my other imagined neighbors could not effectively pursue their favored samaritan projects in the absence of political stability, nor is it that the perils of the state of nature are always the most pressing. The point, rather, is that the perils that prevail in the absence of political society are distinct insofar as they create what is fundamentally a coordination problem: There is no way other than general compliance with a single authoritative set of rules to secure peace and protect basic moral rights. The upshot of this is not only that we must sacrifice to rescue others from the perils of the state of nature, but also that we (as individuals) *have essentially no discretion as to the form that our sacrifice must take*. Of course, virtually all of us would prefer to determine the content of our sacrifice, but the political solution to the perils of the state of nature is predicated on denying individuals this sort of dominion, so an integral part of the sacrifice is to have little to no say in what our sacrifice must be. If one reserves for oneself this individual dominion (by ignoring the law so that one might contribute more to some apolitical peril, by contributing to political stability elsewhere, or even by contributing to one's own state in an extralegal manner), then one is helping oneself to an unfair

portion of discretion, free riding on others who have forgone this discretion.

None of this is to suggest that apolitical peril does not exist or that there are no moral reasons to ameliorate it. Clearly, we should care deeply about those who are starving to death or suffering with various poverty-related diseases, and equally clearly, one is virtuous to the extent that one sacrifices on behalf of these people. But the crucial point is that each of us enjoys a degree of discretion regarding these other types of peril that we lack with respect to political peril. Whereas one is generally free to choose which charitable causes to support, one has a duty to obey the law because this type of discretion is incompatible with solving the dire coordination problem that the state of nature presents. Thus, even though the samaritan account of our duty to obey the law begins with a natural duty, it can satisfy the particularity requirement because there is a straightforward explanation for why our duty to do our fair share to rescue others from peril must come in the particular form of obedience to the laws of one's own state.

Particularity and Citizenship

At this point, a critic might object that even if the samaritan theory can explain why one has a duty to obey the laws of the state presiding over one's territory, this is not sufficient to satisfy the particularity requirement because this requirement includes other, more demanding conditions. Indeed, as Simmons describes the problem of particularity, it is not enough to demonstrate how a general duty can require one to obey the laws of one's own state; one must also offer a "principle of political obligation which binds the citizen to one particular state above all others, namely that state in which he is a citizen."⁵

In other words, even if samaritanism can explain why one has an obligation to obey the law wherever one travels, it appears incapable of capturing the special ties one has to one's compatriots

5 Simmons, *Moral Principles and Political Obligations*, 31–2.

and one's own country. To appreciate the force of this problem, consider the situation of those who travel abroad. The samaritan theory of our duty to obey the law (rightly, I think) implies that Paul from Canada has a duty to obey the Australian laws when he travels to Australia, for instance, but most of us think that Paul continues to have a moral obligation to pay his Canadian taxes even if he lives in Australia for an extended period of time. It is unclear how any theory based on samaritan duties can explain this latter duty, however, because samaritanism appears indifferent to any relationship between a person and her compatriots or state. First and most obviously, since samaritan duties are by definition owed to moral strangers (i.e., they exist independently of any previous transaction or preexisting association), they appear ill equipped to explain why Paul owes more to Canadians than to Australians. Second and just as importantly, because I have argued that samaritanism particularizes one's political duties territorially, it is unclear how this approach could possibly suggest that a Canadian living abroad can retain a special duty to Canada. Indeed, given that I have insisted that political states can perform their requisite political functions only if they uniformly coerce all those who are territorially contiguous (and thus, peace could not be secured if citizens were sorted into separate countries according to eye color, or even according to place of birth if sufficient numbers of people were transient, for instance), it seems that I must also insist that whatever duties Paul initially had to the state of Canada would immediately be owed to the Australian government once his plane lands in Australia.

Because I think there is something to this more demanding construal of the particularity requirement, let us explore how a samaritan theorist might go about explaining the special relationship between expatriates like Paul and their territorially distant states. Before doing so, however, I want to stress that we need not reject the samaritan theory even if it proved utterly incompatible with the special moral bonds pretheoretically thought to exist among compatriots and between a citizen and her state. There are two related reasons that samaritanism should be retained even if it cannot satisfy the most stringent construal of the particularity

requirement. First, by far the most pressing challenge in political theory is to explain the twin convictions that (1) political states may legitimately coerce their subjects and (2) constituents have a moral duty to obey these coercive laws. It is also true that many of us are pretheoretically inclined to posit a special, morally salient relationship between a citizen and her state, but this relationship is unquestionably secondary to the core political issues of state legitimacy and political obligation. Thus, it would be wrong to reject a theory merely because it could not accommodate *all* of our pretheoretic intuitions; instead, we should value the samaritan approach for the straightforward fashion in which it answers our most important questions. (Just as we abandon a scientific theory only when we have a better one, not merely because it cannot explain all the data, in political philosophy we should not dismiss samaritanism merely because it is not obvious how it squares with every pretheoretic conviction.) Secondly, notice that our belief in the special relationship between a citizen and her state is not only of secondary importance, it is also held with less conviction. While most of us come to the subject with a variety of beliefs about our political duties, we are typically by far the most confident in our two most basic suppositions that a state may permissibly coerce those within its territory and that constituents have a duty to defer to those rules. As a consequence, first and foremost we should seek a theory of political obligation that squares with our two most confident judgments. Thus, rather than discard an account if it could accommodate only these beliefs, we should remain open to revising some of our less confident antecedent judgments if they appear unjustified by the best theories. Thus, for two reasons I think it would be unwise to place too much importance on a theory's capacity to satisfy the most demanding version of the particularity requirement. As I mentioned earlier, however, I share the pretheoretic view that not all political obligations must be territorially grounded, so let me now explain how an advocate of samaritanism might describe Paul's special political obligations to Canada and Canadians.

To begin, let me acknowledge that it is not at all clear how samaritanism on its own could explain a citizen's special moral

bond to her territorially distant state or compatriots. It does not follow that defenders of the samaritan approach must deny these additional moral responsibilities, however, because there is obviously more to ethics than samaritanism, and nothing prohibits a samaritan theorist from invoking these other moral considerations as long as they are not incompatible with samaritanism. After all, the arguments to this point have not been designed to show that nonsamaritan considerations are always beside the point; rather, I have sought to show only that an account grounded in samaritanism can explain our moral duty to obey the law.

Here a critic might object that it is wrong to invoke nonsamaritan considerations at this stage on the grounds that, if various transactional and associative considerations were not acceptable earlier, presumably they should be just as problematic now. This objection is misguided, however, because it implies that the moral landscape cannot evolve in significant ways. In particular, once samaritan-justified states are in existence, their presence might subsequently give rise to morally relevant relations either among fellow citizens or between citizens and their states. For example, many insist that states cannot be legitimate unless governed democratically. If this is correct, then there may be requirements of effective democracy (which have nothing to do with samaritanism) that explain either why the state must be ordered in some particular fashion or why compatriots must treat each other in a given manner. Similarly, if equality is an essentially relational matter (so that the permissibility of any given inequality depends upon the relationship between the haves and have-nots), then it might follow that compatriots have greater redistributive responsibilities to one another than to otherwise similarly situated foreigners.

It is not essential to pursue these and other possibilities further here; for now, I would like to stress the voluntary nature of citizenship for expatriates like Paul. Specifically, if it is plausible to suppose that someone like Paul has an obligation to continue paying his Canadian taxes even though he now lives in Australia, it is because he *chooses* to retain his citizenship. If Paul wanted to have nothing to do with Canada (or even if he merely felt that

retaining his Canadian citizenship was not worth the costs), then he could simply renounce his citizenship. And given that Paul has the option to avoid altogether the costs and benefits of Canadian citizenship, it seems reasonable to regard whatever costs he incurs as voluntarily accepted.

At this point, one might object that consent cannot ground Paul's obligation for the very reasons I dismissed consent-based accounts of our duty to obey the law in Chapter 1. This objection misses the mark, though, because my earlier contention that *not everyone* has consented to the state's presence does not entail that *no one* has. More specifically, earlier I questioned the consent theory of our duty to obey the law because states could not satisfactorily perform their requisite functions if they coerced only those who freely consented. It does not follow from this, however, that no one has so agreed. Among those who appear to have consented, two groups stand out: naturalized citizens, who make an explicit agreement when they enter the territory, and expatriates, who choose to retain their citizenship when they leave the country. (It is no coincidence that these two groups consist of individuals who freely cross the state's territorial borders.)

A critic might also protest that it is wrong to characterize Paul's retention of citizenship as fully voluntary because the costs of severing his connection with Canada are potentially dire, especially if he cannot immediately become an Australian citizen. Indeed, given how vulnerable one might be if one had no citizenship, it is tempting to understand Paul's choice to retain allegiance to Canada as coerced. And since coerced choices are typically not morally binding, it seems inappropriate to suggest that Paul's political duties to Canada are justified by being voluntarily incurred. I resist this potential objection as well, however, because the extraordinary benefits of citizenship need not coerce an expatriate to remain a citizen any more than a car's great utility coerces its owner to retain ownership. (Indeed, if anything, this objection merely confirms the point I have emphasized throughout: that the net costs of political life cannot be characterized as unreasonably burdensome.) Thus, it strikes me as perfectly sensible to suggest that samaritan considerations justify the state's presence

in relation to all of those within its territory (even those who have not consented and would prefer to take their chances in a state of nature), and that territorially distant expatriates might also have a moral duty to incur the costs of citizenship when they voluntarily retain their standing as citizens.

Finally, I should acknowledge a striking limitation to my suggestion that Paul's continued responsibilities to Canada are voluntarily incurred: It does not explain how Paul might be bound to Canada *even if he renounced his citizenship*. In other words, by fastening upon the voluntary acceptance of political ties, I apparently have no way to explain why *all* expatriates have a special obligation to their "home" states, regardless of their personal interest in retaining their original citizenship.

There are two salient ways to respond to this limitation: Either I could search for other, nonvoluntary grounds for the special moral ties each of us has to her state, or I could simply embrace this limitation as appropriate. Although I do not deny that there could occasionally be morally relevant considerations that entail that various expatriates have an enduring, nonvoluntary debt to their countries, I am more inclined toward the second option. In my view, it is no counterexample to the samaritan account that it does not necessarily imply that Paul has an irrevocable duty to Canada. On the contrary, even if some of us have a vague pretheoretic sense that we all have permanent, nonterritorial, and nonvoluntary duties to the states in which we are born and/or raised, I think this belief should be abandoned. To suggest that a state enjoys a permanent position of moral dominion over all of those it unilaterally claims as citizens (even if these people deliberately move out of the territory and explicitly renounce their citizenship) is tantamount to conceiving of citizens as essentially the political property of their states. I assume without argument that this position is implausible. Moreover, even if an occasional theorist is inclined to endorse such a radical position, certainly voluntarists who are skeptical that we have *any* political obligations would not reject my account for its failure to give states such an extreme and irrevocable claim over their citizens. Indeed, to put the point in a stark but revealing context, I began this book by

arguing at length that citizenship is importantly distinct from slavery, so it should come as no surprise that I now deny that states enjoy a type of claim over their constituents that slave owners mistook themselves as having over their slaves.

To review, it seems right that samaritan considerations on their own cannot accommodate all of our pretheoretic intuitions about our political obligations, but this is no cause for concern both because they appear capable of explaining our duty to obey the law and because there is no reason why they cannot be combined with other morally relevant considerations that help explain other facts, such as why (some) expatriates have a duty to pay taxes to their country of citizenship. It appears true that even a suitably supplemented samaritanism could not explain every political duty that some are inclined to posit, but I take this as a virtue rather than a deficiency of the account. Clearly, the appropriate goal is not to explain every political responsibility ever conceived, but rather to justify those duties that, on reflection, seem plausible to assert. In terms of our more specific discussion, we should conclude that even if citizens can on occasion find themselves with moral duties to which they did not freely consent, citizenship is emphatically *not* tantamount to slavery, and we should be judicious about positing extreme and irrevocable duties as well as wary of those who do.

Conclusion

Some of us may have political duties grounded in consent, and many of us might have a duty to obey the law in return for the political benefits that we have received, but if the arguments to this point have been sound, then samaritan considerations form the foundation of a theory that explains why all of us have a moral duty to comply with the state's legal commands.⁶ Let me emphasize, however, that at no point have I meant to suggest

6 For the most thorough and sophisticated defenses of the consent and fairness theories of the duty to obey the law, see Harry Beran, *The Consent Theory of Political Obligation* (London: Croom Helm, 1987), and George Klosko, *The Principle of Fairness and Political Obligations* (Lanham, MD: Rowman & Littlefield, 1992).

that we *invariably* have an *absolute* moral duty to obey the law. On the contrary, I seek to show only that there is a *prima facie* obligation to obey the *just* laws of a *legitimate* regime. Spelling out my thesis in this way indicates that our account will not be complete until we have said something about (1) which laws are just, (2) when a state is legitimate, and (3) how and when a *prima facie* obligation to obey the law might be overridden. With this in mind, I will turn next to questions regarding which laws are just, and in the fourth and final chapter I will reflect on how one should respond when confronted with either an unjust law or an illegitimate regime. For now, we can conclude at most that we all have a defeasible moral duty to follow a just law validly enacted by a legitimate regime.